

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING SECTION 10.16.150, PARKING VIOLATION HEARINGS AND APPEAL PROCEDURES, OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING, MODIFYING THE PROCEDURES GOVERNING THE ADMINISTRATIVE REVIEW OF PARKING CITATIONS, MAKING CONFORMING AMENDMENTS AND REPEALING AN OBSOLETE PROVISION."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Section 10.16.150, Parking Violation Administrative Review Procedures, of Chapter 10.16, Arrest and Citation Procedure, and Section 10.60.040, Fine Schedule, of Chapter 10.60, Parking Limitations, of Title 10, Vehicles and Traffic, of the City of Cheyenne, Wyoming, are hereby amended to read:

10.16.150 - Parking violation ~~hearings and appeal~~ administrative review procedures.

- ~~A. Civil actions to enforce this chapter may be adjudicated by an administrative hearing officer actively licensed to practice law in the State of Wyoming designated by the mayor.~~
- A. Any person liable for a parking citation may request administrative review of the citation by contacting the police department parking administration manager in person, by telephone or mail not more than fifteen (15) days after the date of the issuance of the citation. The request shall specify the citation for which the person seeks review and provide the reasons for seeking administrative review. Under this section, a request for review made by telephone shall be considered received as of the day it was made if received by a police department employee between the hours of 8:00 a.m. and 5:00 p.m. of any day, except on Saturday, Sunday or a city holiday.
- ~~B. A hearing for a parking violation may be heard by an administrative hearing officer. The administrative hearing officer may~~ Upon receipt of a request for administrative review under subsection (A) of this section, the parking administration manager shall promptly transmit the request to the director of the compliance department or his or her designee. The director shall review the citation and the facts and circumstances surrounding the issuance of the citation and make such ~~orders~~ written determinations as may be necessary and proper to dispose of such cases to appropriately and impartially decide the controversy, including reduction or increase of fine amounts notwithstanding the schedule of fines set forth by the governing body and this section.
- ~~C. Any defendant who has been issued a parking citation~~ Any person aggrieved by ~~a the~~ decision in a parking violation hearing of the director of the compliance department or his or her designee as provided in this subsection may seek judicial review in the manner

provided by the Wyoming Administrative Procedure Act and the Wyoming Rules of Appellate Procedure.

~~D.C.~~ If a defendant, who has been issued a parking citation, fails to request a hearing within fifteen (15) days after the issuance of the citation, the allegations in the citation Any person that fails to request a hearing within fifteen (15) days after the issuance of the citation as required under subsection (A) of this section shall be deemed to have waived their right to administrative review and to have admitted and to the allegations contained in the parking citation. After the expiration of the fifteen (15) day appeal period, the ~~police department~~ parking administration manager shall enter judgment for the city and impose a civil sanction in the amount of the issued citation and any fine increases ~~in accordance with as provided by~~ Section 10.16.090(A) of this chapter.

~~E.~~ If a defendant, who has requested a hearing in accordance with Section 10.16.140, fails to appear at their scheduled hearing, the police department parking administration manager shall enter judgment for the city and impose a civil sanction in the amount of the issued citation and any fine increases in accordance with Section 10.16.090 A.

10.60.040 - Fine schedule.

Any ~~such~~ fine to be imposed pursuant to a notice of violation issued under Section 10.60.030 of this chapter, including any applicable administrative fees, shall be ~~determined specified~~ by resolution of the governing body, ~~including any administrative fees,~~ and shall be made available to the general public in the form of a fine schedule. Administrative fees shall be factored into the total amount of the fine before any late payment penalties are applied in accordance with Section 10.16.090(A) of the city code.

~~A. Administrative fees shall be factored into the total amount of the fine before any late payment penalties are applied in accordance with Section 10.16.090A.~~

~~B. Court costs of ten dollars (\$10.00) may be assessed against those requesting a hearing in accordance with Section 10.16.140.~~

Section 2. That Section 10.16.140, Request for Hearing in Parking Cases, of Chapter 10.16, Arrest and Citation Procedure, of Title 10, Vehicles and Traffic is repealed.

~~10.16.140—Request for hearing in parking cases.~~

~~The person or persons liable for the parking violation may request a hearing for consideration of the citation by contacting the police department parking administration manager in person, by telephone or mail within fifteen (15) days after the date the citation was issued, payment of court costs of ten dollars (\$10.00), and requesting a hearing to contest the alleged violation. A request for a hearing will be considered received by the city if it is actually received by the police department parking administration manager within fifteen (15) calendar days after the date the citation was issued. A request for a hearing made by telephone will be considered received the day~~

~~it is made if it is received by a police department employee between the hours of 8:00 a.m. and 5:00 p.m. of any day, except on Saturday, Sunday or a city holiday.~~

Section 3. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 4. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
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